

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS MARCH TERM A.D. 2025

BEFORE HER HONOR: SIE-A-NYENE G. YUOH.....CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA ASSOCIATE JUSTICE
BEFORE HIS HONOR: YAMIE QUIQUI GBEISAY.....ASSOCIATE JUSTICE
BEFORE HER HONOR: CEANEH D. CLINTON JOHNSON.....ASSOCIATE JUSTICE

Elizabeth Williette Tubman, Administrix, the)
Intestate Estate of John Hilary Tubman...Appellant)
) Appeal

Versus)

Malita Martha Tubman (Daughter) one of the)
Administrixes of the Intestate Estate of John Hilary)
Tubman.....Appellee)

GROWING OUT OF THE CASE:)

Malita Martha Tubman (Daughter) one of the)
Administrixes of the Intestate Estate of John Hilary)
Tubman.....Petitioner)

Versus) Petition for Closure of Estate

Elizabeth Williette Tubman (Daughter) one of the)
Administrixes of the Intestate Estate of John Hilary)
Tubman..... Respondent)

Heard: March, 2025

Decided: May 28, 2025

MADAM CHIEF JUSTICE YUOH DELIVERED THE OPINION OF THE COURT

This appeal is from the January 5, 2024 final ruling of Judge Ujay Bright, the Assigned Judge to the Monthly and Probate Court for Montserrado County, sitting in its January Term A.D. 2024, when he heard a petition for the closure of the Intestate Estate of John Hilary Tubman that was filed on May 27, 2022, by the present appellee, Malita Martha Tubman.

In order to appreciate the facts and circumstances of the case leading to the ruling by Judge Bright, we must delve into the history of the matter.

The pertinent facts as culled from the records reveal that John Hilary Tubman died intestate on September 22, 2021, in the City of Monrovia, Republic of Liberia; that at the time of his demise, both the appellant and appellee being resident in the United States of America, on September 30, 2021, Wilhelmina Tubman Tucker, William Eli Tubman and Jocelia Tubman, nephew and nieces, of the decedent, filed a petition before the Monthly and Probate Court for Montserrado County, for the

issuance of temporary letters of administration to administer the Intestate Estate of John Hilary Tubman.

In their petition, the petitioners indicated that John Hilary Tubman died leaving two (2) natural heirs, Elizabeth Tubman and Malita Martha Tubman and upon hearing the petition, on November 2, 2021, the trial court issued letters of administration in the name of the said petitioners, authorizing them to temporarily administer the Intestate Estate of John Hilary Tubman; that on December 13, 2021, Elizabeth Tubman, the present appellant, along with three (3) other relatives of the Tubman family petitioned and were granted letters of administration by the same Monthly and Probate Court for Montserrado County to administer the selfsame Intestate Estate of John Hilary Tubman, without a revocation of the Letters of Administration already issued; notwithstanding this legal blunder by the trial judge as regards the issuance of a second letters of administration without revoking the first one, the court again proceeded to and did issue on February 4, 2022, a third Letters of Administration to Wilhelmina Tubman Tucker, E.C.B. Jones and William Gabriel Tucker to administer the selfsame Intestate Estate of John Hilary Tubman; that as if these errors were not sufficient, on March 21, 2022, Malita Martha Tubman, the appellee herein, in her capacity as daughter, filed a petition for Letters of Administration to administer the Intestate Estate of John Hilary Tubman and same was issued her, bringing the letters of administration issued for the administration of the Intestate Estate of John Hilary Tubman to four (4).

It was due to this prevailing situation, that is, the existence of four (4) letters of administration and ten (10) administrators, that the appellant, Elizabeth Williette Tubman, on October 18, 2022, filed a six-count bill of information, informing the trial court about the issuance of three (3) subsequent letters of administration without revoking the prior one and further requested the court to revoke all such prior letters of administration issued to parties to administer the Intestate Estate of John Hilary Tubman and to issue one letters of administration to both the appellant and the appellee as daughters and heirs of the late John Hilary Tubman, to jointly administer their deceased father's estate. It is the law that "a probate judge cannot issue a second letters of administration where he/she had earlier issued letters of administration as same is illegal and erroneous. *Prince D. Jegbadai and the Intestate Estate of Joe Jegbadai v. LBDI*, Supreme Court Opinion, October Term, 2024. Hence, it was *ultra vires* for the trial judge to have issued subsequent letters of administration to administer the Intestate Estate of John Hilary Tubman without revoking the previous one.

In the same Bill of Information, the appellant also brought to the attention of the trial court the existence of a petition for the closure of the estate earlier filed by the present appellee, Malita Martha Tubman and returns thereto filed by the present appellant, Elizabeth Williette Tubman, and where in the said returns she, the appellant stated that Malita Martha Tubman could not solely apply for the closure

of the estate, since they both are the heirs of the late John Hilary Tubman, and that any application for closure be done jointly by both heirs.

From the mentioned bill of information and the submission made by the counsel representing the appellee interposing no objection to the bill of information filed by the appellant for the revocation of the four (4) letters of administration issued to ten (10) different individuals at diver times to administer the Intestate Estate of John Hilary Tubman and to issue one letters of administration to both the appellant and the appellee as daughters to jointly administer their deceased's father estate, Judge Kollie ruled as follows:

"...As to the issue regarding the legitimacy of the appellant and the appellee as daughters of the decedent John Hilary Tubman, this court says that since the parties are not in disagreement that Malita Martha Tubman and Elizabeth Tubman are daughters of the late John Hilary Tubman, this court hereby grants the submission since it was not objected to. This court further requests that all those previously issued letters of administration to administer the Intestate Estate of John Hilary Tubman submit a report of their stewardship within ten (10) days as to their manner and form of said stewardship..."

That as to the issue regarding the pending petition for foreclosure of the estate and the returns thereto, the trial Judge Kollie ruled as follows:

"....As to the petitioner's counsel request to have this Court take into consideration their pleadings so as to make a determination thereon, this Court says that the petition and the resistance thereto are requesting this Court for the closure of the Intestate Estate of John Hilary Tubman. A review of the pleadings revealed that the petitioner filed a petition for the closure of the estate on May 27, 2022, and the respondent consented to the closure of the estate but argued only that there are two (2) heirs of the late John Hilary Tubman and once the issue regarding the heirs is resolved, they interpose no objection to the closure of the estate..."

The above-quoted ruling of Judge Kollie on the bill of information filed by the present appellant and the submission thereto establishes that the issue regarding the legitimacy/paternity of the appellant and the appellee as daughters of the late John Hilary Tubman and joint heirs of his estate was settled and no longer in dispute. However, this Court notes that the petition for the closure of the Intestate Estate of John Hilary Tubman and the resistance thereto although addressed in the Ruling on the bill of information, same was not withdrawn by either party, thus remained pending before the Monthly and Probate Court for Montserrado County. We summarize the petition for closure and the returns thereto, to wit:

In the petition for the closure of the Intestate Estate of John Hilary Tubman, the appellee, Malita Martha Tubman, alleged among other things, that she is the only natural heir of the deceased John Hilary Tubman; that, as the sole surviving heir of the deceased, she filed a petition for Letters of Administration and was issued same by the

Monthly and Probate Court for Montserrado County to administer her deceased's father estate; that following the issuance of the Letters of Administration to administer the said estate, she filed a full inventory of the estate with the Monthly and Probate Court for Montserrado County on June 29, 2022; hence, she is now seeking the closure of the estate as per the relevant provisions of the Decedents Estates Law which require of closure of the decedent's estate within twelve (12) months as of the date of the issuance of the Letters of Administration.

On July 11, 2022, the appellant Elizabeth Williette Tubman filed returns to the petition essentially denying the averments as stated therein, specifically the petitioner's assertion that she is the sole natural heir of the deceased; that she (appellant) is also the legitimate daughter of the deceased John Hilary Tubman and was previously issued Letters of Administration to administer the deceased's estate along with three (3) other individuals in 2021; and that there are exchanges between the appellee and her in the records indicating their relationship as biological daughters of the deceased.

On July 22, 2022, the appellee filed a reply to the appellant's returns basically restating the averments in her petition for closure of the estate to the effect that she is the sole heir of the deceased John Hilary Tubman.

The above narrative and the quoted petition for closure of the estate and the returns thereto are the crux of the present appeal, and the status of the present case when Judge Ujay W.H.S. Bright was assigned to the Monthly and Probate Court for Montserrado County by a letter dated November 30, 2023, mandating him to dispose of the instant case due to the absence of Judge Kollie from the bailiwick of the Republic of Liberia for medical reasons. Hence, the petition for closure of the estate not been withdrawn, and the only matter that remained pending, Judge Bright issued notices of assignment to the parties, on the petition for closure, heard same, and rendered his final ruling. We quote relevant excerpts of the ruling which form the basis of the present appeal, to wit:

"We affirmed and confirmed the principle of law espoused in the Knowlden case and the King case and hold here that where the legitimate children voluntarily invite the illegitimate children to share, receive, and partake in the distribution of their father's estate, the legitimate children waived their rights of exclusivity to the estate and are bound to continue dealing with illegitimate children as co-heirs under the concept that the legitimate children constructively acknowledged and recognized their illegitimate siblings as equals. On the other hand, we also hold that where there is no proof of constructive acknowledgment, the illegitimate children cannot be recognized as co-heirs with legal rights to share in the estate of their late father.

Applying this legal maxim to the facts of this case, it is worthy to note here that there is absolutely no proof in the records showing that the late John Hilary Tubman ever legitimized Elizabeth W. Tubman pursuant to Section 4.92 of the Domestic Relations Law; or that the deceased acknowledged his paternity of Elizabeth W. Tubman in writing before a Justice of the Peace and probated said acknowledgment pursuant to Section 3.5(b) of the Decedents Estate Law or that the paternity of Elizabeth W. Tubman was adjudicated by a court of competent jurisdiction pursuant to Section 3.5(e) of the Decedents Estate Law.

This court says given the aforesaid plus the fact that there is no invitation from Malita Martha Tubman, extended to Elizabeth W. Tubman to share in the distribution of her father's estate, we are unable to hold here that Malita Martha Tubman constructively acknowledged Elizabeth W. Tubman especially given the testimony of Malita Martha Tubman disallowing, disowning and renouncing Elizabeth W. Tubman as her sister. In view of the aforesaid, we are unable to conclude that Elizabeth W. Tubman is on the same equal footing as Malita Martha Tubman; neither can we hold that she is a co-heir that is legally entitled to inherit from the Intestate Estate of John Hilary Tubman.

We hold here that because there is nothing in the records to show that John Hilary Tubman took the necessary statutory steps to legitimize, acknowledge or recognize Elizabeth W. Tubman pursuant to Section 4.92 of the Domestic Relations Law and Section 3.5(b) of the Decedents Estate Law, this court is unable to declare that Elizabeth W. Tubman is a legitimate heir entitled to inherit from the Intestate Estate of John Hilary Tubman.

Now, Since it has been established that Elizabeth W. Tubman is not entitled to inherit from the intestate Estate of John Hilary Tubman and that Malita Martha Tubman is the only legitimate heir on the records of the Monthly and Probate Court, it is the holding of the Court that the petition of Malita Martha Tubman should be granted and same is hereby granted; that the Intestate Estate of John Hilary Tubman is declared closed; that all Letters of Administration previously issued are hereby revoked; and the Curator of the Monthly & Probate Court is ordered to transfer all properties, both real and personal, to Malita Martha Tubman..."

The appellant, being dissatisfied with the ruling of the trial judge, noted exceptions, announced an appeal to the Supreme Court, and thereafter filed a twenty-five-count bill of exceptions for this Court's review. The relevant counts of which we quote as follows, to wit:

1. That Your Honor committed reversible error when you ruled the case to trial for the sole purpose of investigating factual issues regarding Elizabeth W. Tubman's right of inheritance after your predecessor, His Honor Joseph M. Kollie had earlier ruled on October 24, 2022, that the two (2) sisters were the legitimate heirs of the late John Hilary Tubman and subsequently issued them joint Letters of Administration.

8. Appellant says further that the case before the court presided over by Your Honor was to close the estate and not to distribute Letters of Administration already issued by your predecessor or question his ruling on whether the appellee or appellant is the legitimate child of the late John Hilary Tubman and therefore entitled to the right of inheritance. Respondent says that the Supreme Court has decided on numerous occasions that it is not the province of a judge of concurrent jurisdiction to question, review, or reverse the ruling made by his predecessor of the same rank or status; that it is only the Supreme Court that has the authority, as the Court of last resort, to review, affirm, or reverse the ruling or judgment of a lower court but not a judge of concurrent jurisdiction. Appellant says that Your Honor was in error since the records of the Monthly and Probate Court for Montserrado County clearly showed that the appellant and appellee admitted during the hearing in the Probate Court that they are the two (2) natural children of the deceased John Hilary Tubman and that it was based on their admission from which neither party noted exceptions or appeal taken. Therefore, Your Honor cannot take up the same matter and pass on it when it has already been decided by your predecessor.

9. Appellant says that it was brought to Your Honor's attention, evidenced by the records of the Probate Court that your predecessor had ruled on the matter as to whether the appellant and the appellee are natural children of the deceased John Hilary Tubman and therefore heirs to his property. Yet, Your Honors chose to ignore the records of the very court over which you presided as an Assigned Judge and entered a ruling reversing a previous ruling made by your predecessor Judge Kollie.

11. That Your Honor committed reversible error when you refused to review the court's file to see that the estate was ordered closed by your predecessor and had been turned over to the Curator of the court to conduct an inspection of the properties that were presented based on the inventory submitted by the two (2) children of the deceased John Hilary Tubman and also that the Curator wrote all the tenants to deposit all rentals into an escrow account that had been created by the Curator which the two (2) children were cited to confirm and that both of them were ordered by Judge Kollie to decide how they wanted the assets of the estate to be distributed.

15. That Your Honor erred by ignoring the evidence submitted by the appellant showing that she is indeed the natural born child of the late John Hilary Tubman and that even the appellee had admitted to this fact in manifold conversations and public documents, as well as before your predecessor Judge but all of which Your Honor chose to ignore and instead chose to rely upon the legitimization document produced by the appellee to the exclusion of that of the appellant who was also legitimized by their deceased father.

Our summary of the essential counts of the appellant's bill of exceptions reveals that: 1) the trial judge's alleged abuse of his judicial authority when he proceeded to review the October 24, 2022, ruling of his predecessor Judge Kollie 2) that the appellee had admitted in manifold conversations and public documents, as well as

before Judge Kollie whose ruling was set aside by His Honor U-Jay Bright to the effect that the appellant is the legitimate daughter of the deceased John Hilary Tubman, hence, the appellee could not deny her own assertions earlier made 3) that the estate subject of the instant appeal had been ordered closed by Judge Kollie prior to the assignment of Judge Bright and had been turned over to the Curator of the court to conduct an inspection of the properties submitted to the court based on the inventory agreed to by the appellant and the appellee.

We proceed to address the issues raised in the appellant's bill of exceptions which were summarized herein above.

In counts 1, 8 and 9, the appellant argued that it was improper for His Honor U-Jay Bright to have reviewed and reversed the October 24, 2022, ruling of Judge Kollie which granted Letters of Administration to the appellant and the appellee to jointly administer the Intestate Estate of John Hilary Tubman as it is not the province of a judge of concurrent jurisdiction to question, review, or reverse the ruling made by his predecessor of similar rank or status; that in count 15, the appellant contends that the appellee had admitted in manifold conversations and public documents, as well as before the Monthly and Probate Court for Montserrado County that she (appellant) is her biological sister; and finally, the appellant has maintained that the estate, subject of the instant appeal, had been ordered closed by Judge Kollie prior to the assignment of Judge Bright and had been turned over to the Curator of the Monthly and Probate Court for Montserrado County for the submission of an inventory of the properties by the appellant and the appellee and for the Curator to conduct an inspection of the properties belonging to the estate and submit a Report to the trial court.

Our review of the records shows that Judge Bright in his January 5, 2024, ruling on the appellee's petition for closure of the Intestate Estate of John Hilary Tubman ruled that the appellant was not legitimized by the decedent John Hilary Tubman, and as such, she is not entitled to inherit from his estate. In essence, Judge Bright effectively reversed the October 24, 2022, ruling of Judge Kollie which granted Letters of Administration to the appellant and the appellee to jointly administer the Intestate Estate of the decedent as heirs of the late John Hilary Tubman. This Ruling of Judge Kollie was not appealed from by either party, nor any objections made to the issuance of the joint letters of administration. The Supreme Court has opined that "a party cannot enjoy the benefit of any form of appellate review by remedial process, or before the Full Bench of the Supreme Court, and is bound by the judgment of the lower court where it has failed to note exceptions to the ruling of the trial court and announced an appeal therefrom which would be an indication of the appellant's disagreement with the ruling." *LPRC V. Natl*, 42 LLR 54, 56 (2004).

The Supreme Court has also held that "every court must of necessity take judicial notice of its own records." *Liberia Material Limited v. His Honor Gbeneweleh*, Supreme Court Opinion, March Term A.D. 2015; *Constance et. al v. Ajavon et. al*, Supreme Court Opinion, October Term 2015. Hence, had Judge Bright taken

judicial cognizance of the records in this case, he would not have proceeded in the manner that he pursued, neither would he had reversed the October 22, 2022 Ruling of Judge Kollie which settled the legitimacy of the appellant and the appellee as daughters of the decedent John Hilary Tubman.

Also, this Court reiterates decision entrenched in numerous Opinions, that, “no trial judge has the power to review, modify, rescind, and/or reverse the acts or any decision by a colleague of concurrent jurisdiction on any point already passed upon by him, however erroneous the said act of his/her colleague may be, as this authority lies only with the Supreme Court; besides, the Supreme Court has the authority to render whatever judgment the lower court should have rendered...” *The United Methodist Church and Consolidated African Trading Corporation v. Cooper et al*, 40 LLR 449, 459 (2001); *Emirates Trading Agency Company v. Global Import and Export Company*, 42 LLR 204, 212-213 (2004); *IN RE Judicial Inquiry against Judge Emery S. Paye*, Supreme Court Opinion, October Term, 2012; *Prince D. Jegbadai and the Intestate Estate of Joe Jegbadai v. LBDI*, Supreme Court Opinion, October Term, 2024. In the instant case, the trial judge erred when he failed to take judicial notice of the records showing that the issue of legitimacy of the appellant had already been passed upon by his predecessor judge without any objection or appeal by the appellee, and also evident by the issuance of joint letters of administration as sister to administer the Intestate Estate of their father.

As earlier stated, by virtue of the issuance of a single Letters of Administration to both the appellant and the appellee to administer the Intestate Estate of their deceased father and by the acceptance thereof they acknowledged being daughters of the decedent, and entitled to jointly inherit his estate. and we so hold.

Further, the failure of the appellee to controvert the averments contained in the bill of information constitutes a waiver. A waiver under our law is the voluntary and intentional relinquishment of a known right which, except for such waiver, the party would have enjoyed; it implies an election by a person to knowingly dispense with something of value or to forego some right or advantage which he might, at his option, have demanded or insisted upon; a waiver also operates to preclude a subsequent assertion of a right waived or any claim based thereon. *Juah v. Konneh*, 42 LLR 187, 191 (2004); *Kruah v. Weah*, 42 LLR 148, 152 (2004).

We also see in the records the death announcement and program marking the funeral ceremony of the deceased John Hilary Tubman, in all of which documents the appellant is mentioned as the biological daughter/natural heir of the decedent. This Court has held in a long line of cases that “all admissions made by a party himself or by his agent acting within the scope of his authority are admissible as evidence against him.” *In Re: Universal Printing Press v. Blue Cross Insurance Company*, March Term, A.D. 2015; *Gibson v. Dennis*, 40 LLR 698, 701, (2001); *Wlo Flo v. RL*, 29 LLR 3, 6 (1981); *Civil Procedure Law, Revised Code* 1: 25.8 (1). Hence, this Court taking due note of the appellee’s own admission referring in numerous communications to the appellant as “sister”, and other pertinent evidence

establishing them as sisters and heirs to the decedent, the appellee is estopped from raising any claim challenging the legitimacy of the appellant as the natural heir of the decedent, and we so hold.

As regards the closure of the subject estate, we see in the records a letter dated February 1, 2023, in which letter Joyce Reeves Woods, Counsel for the appellant, wrote a response to an order of Judge Kollie to submit the name of an observer to assist the Curator to identify and establish properties belonging to the Intestate Estate of John Hilary Tubman. Further review of the records reveals a letter dated May 22, 2023 under the signature of Mr. Stephen C. Clarke, then Curator, Monthly and Probate Court for Montserrado County, in which letter the Curator indicated that both the appellant and the appellee received rental payment for the estate up to June 30, 2023, and submitted a detailed list of properties belonging to the estate. Hence, this Court taking judicial cognizance that the proceedings for the closure of the estate had already begun, coupled with the fact that the records do establish that the appellant is the legitimate daughter of the decedent John Hilary Tubman, it was improper for the Judge Bright to have delve into those matters already settled by Judge Kollie, his predecessor. Hence, this Court being authorized by law to give the decision that the lower court should have given, hold that the appellant and the appellee shall continue to jointly administer the Intestate Estate of John Hilary Tubman pending the proper closure thereof.

WHEREFORE AND IN VIEW OF THE FOREGOING, and this Court being authorized by law to review, modify, rescind and/or reverse the acts or any decision of a lower tribunal, hereby reverses the January 5, 2024 ruling of the successor trial judge. The joint Letters of Administration issued the appellant and the appellee to administer the Intestate Estate of John Hilary Tubman remains valid for all intent and purposes including the closure of the estate. The Clerk of this Court is ordered to send a Mandate to the court below commanding the Judge presiding therein to resume jurisdiction over this case and give effect to the Judgment of this Opinion. Costs are ruled against the appellee. AND IT IS HEREBY SO ORDERED.

Ruling Reversed.

When this case was called for hearing, Counsellors Joyce Reeves Woods and Gerald G. Appleton appeared for the appellant. Counsellor Tommy N. Dougba appeared for the appellee.